

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote emergency contract accountability and integrity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>10/15/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>10/16/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>10/17/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>10/21/2025</i>

SENATE No.

By Mr. Tarr, a petition (accompanied by bill) (subject to Joint Rule 12) of Bruce E. Tarr, Kelly A. Dooner, Peter J. Durant, Ryan C. Fattman and other members of the General Court for legislation to promote emergency contract accountability and integrity. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote emergency contract accountability and integrity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 8 of chapter 30B of the general laws is hereby amended, by adding
2 at the end thereof the following:-

3 “No emergency procurement contract entered into pursuant to this section where the
4 commonwealth is a party and the total value of the contract exceeds \$100,000 shall endure for a
5 period of more than 90 days, provided, however that such a contract may be extended for
6 subsequent periods of no more than 90 days upon written findings of the necessity of such
7 extension, consistent with the provisions of this section, which shall be entered upon the record,
8 provided that any such emergency procurement shall be approved in writing by the governor.

9 The procurement officer shall make a record of each emergency contract as soon after the
10 procurement as practicable, specifying each contractor's name, the amount and the type of each
11 contract, a listing of the supply or service provided under each contract, and the basis for
12 determining the need for an emergency procurement, provided that such record shall include

written findings specifying the cause and circumstances of the emergency, the reasons why it was not reasonably foreseeable, and any identifiable risks arising from not utilizing an emergency contract. The procurement officer shall submit a copy of this record at the earliest possible time to the state secretary for placement in any publication established by the state secretary for the advertisement of procurements, posting on the secretary of states website in an area that is exclusive for posting of procurements and shall also submit a copy of such record to the inspector general, for review provided further, that the inspector general shall file a report containing the results of such review in a timely manner with the clerks of the house and senate.

SECTION 2. 30B as appearing in the 2022 Official Edition is hereby amended by inserting after section 1 the new section 1 1/2:-This chapter shall apply to every contract conducted by a non profit entity as established under chapter 180 of the general laws pursuant to a contract or other grant of funding from the commonwealth

SECTION 3. Section 20 of Chapter 268A as appearing in the 2022 Official Edition is hereby amended by inserting at the end thereof the following:- Provisions of this chapter shall apply to any board member, officer, director or employee of any non-profit as established under chapter 180 entity seeking or receiving a contract involving state funding.